



Bill Number: S.B. 1743

Ortiz Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Removes the requirement that a filing officer redact an individual contributor's employer from a campaign finance report.
2. Removes the \$1,000 liability for a filing officer that improperly discloses an individual contributor's street number and name or precise residence location.
3. Requires a filing officer that improperly discloses an individual contributor's street number and name or precise residence location to remove the information from the publicly available source within 10 business days after receipt of written notice.
4. Requires written notice to be sent by certified mail to the filing officer.
5. Classifies failure by a filing officer to remove an individual contributor's precise residence location, street number or street name within ten business days of written notice, rather than the knowing disclosure of such information by a filing officer, as a class 1 misdemeanor.
6. Applies these new requirements for filing officers and campaign finance reports to filing periods beginning on or after April 1, 2027.

ORTIZ FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1743
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-928, Arizona Revised Statutes, is amended to
3 read:

4 16-928. Filing officer; statements and reports

5 A. A person that is required to file any statements and reports
6 required by this article and articles 1, 1.1, 1.2, 1.3, 1.5, 1.6 and 1.7
7 of this chapter shall file with the filing officer in charge of that
8 election, as follows:

9 1. The secretary of state is the filing officer for statewide and
10 legislative elections, including retention elections for supreme court
11 justices and court of appeals judges. The secretary of state is also the
12 filing officer for committees that support or oppose a recall election or
13 the circulation of a petition for a recall election for a statewide or
14 legislative officeholder, for committees that support or oppose a
15 statewide initiative or referendum or other statewide ballot measure,
16 question or proposition or the circulation of a petition for a statewide
17 initiative or referendum or other statewide ballot measure, question or
18 proposition.

19 2. The county officer in charge of elections is the filing officer
20 for county, school district, community college district and special taxing
21 district elections, including retention elections for superior court
22 judges. The county officer in charge of elections is also the filing
23 officer for committees that support or oppose a recall election or the
24 circulation of a petition for a recall election for an officeholder of a

1 county office, a school district governing board office, a community
2 college district governing board office or a special taxing district
3 governing board office, for committees that support or oppose a county,
4 school district, community college district or special taxing district
5 initiative or referendum or other ballot measure, question or proposition,
6 including bond, tax, budget and budget override measures or that oppose or
7 support the circulation of a petition for a county, school district,
8 community college district or special taxing district initiative or
9 referendum or other county, school district, community college district or
10 special taxing district ballot measure, question or proposition.

11 3. The city or town clerk is the filing officer for city and town
12 elections. The city or town clerk is also the filing officer for
13 committees that support or oppose a recall election or the circulation of
14 a petition for a recall election for a city or town officeholder, for
15 committees that support or oppose a city or town initiative or referendum
16 or other city or town ballot measure, question or proposition or the
17 circulation of a petition for a city or town initiative or referendum or
18 other city ballot measure, question or proposition.

19 B. Notwithstanding subsection A of this section, a standing
20 committee shall file reports only with the secretary of state.

21 C. A filing officer shall provide the option for electronic filing
22 and shall make all statements and reports publicly available on the
23 internet. A filing officer may comply with this section by opting into
24 the secretary of state's electronic filing system.

25 D. [FOR FILING PERIODS THAT BEGIN ON OR AFTER APRIL 1, 2027.] ON
26 RECEIVING A CAMPAIGN FINANCE REPORT AND BEFORE MAKING IT PUBLICLY
27 AVAILABLE, THE FILING OFFICER SHALL REDACT FROM THE LISTED INDIVIDUAL
28 CONTRIBUTORS' INFORMATION THE ~~[INDIVIDUAL'S EMPLOYER AND THE]~~ INDIVIDUAL'S
29 STREET NUMBER AND STREET NAME OR, FOR AN INDIVIDUAL WHO PROVIDES A
30 RESIDENCE LOCATION, SHALL REDACT THE INDIVIDUAL'S PRECISE RESIDENCE
31 LOCATION. THE INFORMATION PRESCRIBED BY THIS SUBSECTION MAY NOT BE
32 DISCLOSED IN ANY MANNER AND IS NOT A PUBLIC RECORD.

33 Sec. 2. Title 16, chapter 6, article 1.4, Arizona Revised Statutes,
34 is amended by adding section 16-929, to read:

35 16-929. Information disclosure; violation; classification

36 [A.] [FOR FILING PERIODS THAT BEGIN ON OR AFTER APRIL 1, 2027, IF]
37 A FILING OFFICER ~~[WHO]~~ IMPROPERLY DISCLOSES AN INDIVIDUAL'S STREET NUMBER
38 AND STREET NAME OR, FOR AN INDIVIDUAL WHO PROVIDES A RESIDENCE LOCATION,
39 THE PRECISE RESIDENCE LOCATION ~~[OR AN INDIVIDUAL'S EMPLOYER]~~ IN A CAMPAIGN

1 FINANCE REPORT IN VIOLATION OF SECTION 16-928 ~~[IS LIABLE TO THE INDIVIDUAL~~
2 ~~FOR EACH IMPROPERLY DISCLOSED REPORT IN AN AMOUNT OF \$1,000.~~

3 ~~B. A STATE, COUNTY OR OTHER LOCAL OFFICER OR EMPLOYEE WHO HAS~~
4 ~~CUSTODY OF OR ACCESS TO THE INFORMATION PRESCRIBED BY SUBSECTION A OF THIS~~
5 ~~SECTION AND WHO KNOWINGLY DISCLOSES THAT INFORMATION TO THE PUBLIC IN~~
6 ~~VIOLATION OF SECTION 16-928] [.~~ SUBSECTION D, THE FILING OFFICER SHALL
7 REMOVE THE INFORMATION FROM THE PUBLICLY AVAILABLE SOURCE THAT IS
8 CONTROLLED OR OPERATED BY THE FILING OFFICER WITHIN TEN BUSINESS DAYS
9 AFTER RECEIPT OF A WRITTEN NOTICE TO REDACT THE INFORMATION. THE WRITTEN
10 NOTICE SHALL BE SENT BY CERTIFIED MAIL TO THE FILING OFFICER. A FILING
11 OFFICER WHO FAILS TO REMOVE OR REDACT THE INFORMATION WITHIN TEN BUSINESS
12 DAYS AFTER RECEIPT OF THE NOTICE TO REDACT] IS GUILTY OF A CLASS 1
13 MISDEMEANOR.

14 Enroll and engross to conform

15 Amend title to conform

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